

Calendar Lines 4 through 6**Case Name:** Austin Cortez v. David Lee**Case No.:** 25CV465227

At issue are three motions to compel discovery by plaintiff Austin Cortez against defendant David Lee: a motion to compel further responses to special interrogatories, set one; a motion to compel further responses to a request for the production of documents, set one; and a motion to compel further responses to form interrogatories, set one. Notice is proper and the motions are opposed by defendant. The case is a negligence action related to an automobile accident.

It appears these motions could have been largely avoided had plaintiff undertaken greater efforts to meet and confer before filing the motions. The extent of plaintiff's meet and confer efforts appears to have been a single meet and confer letter sent to defense counsel. Defense counsel indicates he did not become aware of that letter until after the motions to compel were filed. Plaintiff's meet and confer efforts were deficient. (Code Civ. Proc., § 2016.040.) For this reason, plaintiff's requests for sanctions related to the motions are DENIED.

Special Interrogatories, Set One

The motion to compel related to special interrogatory Nos. 17, 18, 19, 20, 21, 26, and 27. Defendant supplemented his responses after the motion to compel was filed, and the motion is now largely moot. Plaintiff's reply focuses on a single special interrogatory that he argues remains deficient: No. 17. That interrogatory asks defendant to "State where defendant purchased the subject grill that fell from the vehicle defendant was driving at the time of the incident." (Some capitalization omitted.) Defendant's amended response is, "Defendant does not call where his purchase the subject grill." Plaintiff argues that response is unintelligible. The court agrees that, without clarification, the response is not clear. It is possible defendant meant to state: "Defendant does not *recall* where *he purchased* the subject grill." The response also does not indicate whether defendant undertook the "reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations" required by Code of Civil Procedure section 2030.220.

The motion is GRANTED IN PART. Defendant is ordered to clarify its response to special interrogatory No. 17 no later than July 9, 2026, consistent with the foregoing. Plaintiff's request for sanctions is denied.

Request for Production, Set One

The motion to compel related to a single request for production—No. 18—which sought documents about ownership of the grill that fell from defendant's vehicle. Plaintiff's reply acknowledges that defendant served code compliant amended responses after plaintiff filed the motion. The motion is DENIED AS MOOT. Plaintiff's request for sanctions is denied.

Form Interrogatories, Set One

The motion to compel related to form interrogatory Nos. 10.2, 12.6, 15.1, and 16.10. Defendant amended his responses after the motion was filed, which appears to have address the deficiency in the original response to interrogatory No. 16.10. Plaintiff's reply argues the amended responses to the remaining three form interrogatories are deficient.

Interrogatory No. 10.2 asks about any disabilities defendant had immediately before the incident. Defendant's amended response states, "Defendant is [*sic*] not have any physical, mental, or emotional disabilities immediately after the incident." (Some capitalization omitted.) That is not responsive. Defendant must provide a further response that answers the question posed.

Interrogatory No. 12.6 asks about whether any reports were made by any person after the incident. Defendant's amended response states, in relevant part, "Defendant is not aware of any non-privilege [*sic*] reports made by any person concerning the incident." (Some capitalization omitted.) That response is deficient. Defendant must provide a "Yes" or "No" response. To the extent reports exist that are privileged, defendant must state as much (including the nature of the privilege asserted).

Interrogatory No. 15.1 asks defendant to identify all facts upon which he bases a denial or special or affirmative defense. Defendant's amended response states, in relevant part: "Defendant is not asserting any affirmative defenses at this time. Defendant reserves the right to amend this response." That conditional response is both deficient and inconsistent with defendant's answer to the complaint, which asserts nine affirmative defenses. Defendant must provide an amended response. To the extent defendant is now waiving all affirmative defenses, he must state as much unequivocally.

The motion is GRANTED IN PART. Defendant must provide further responses to form interrogatory Nos. 10.2, 12.6, and 15.1 no later than July 9, 2026, consistent with the foregoing. Plaintiff's request for sanctions is denied.

The court will prepare the order.

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Calendar Line 8

Case Name: Gita Patel v. Sunil Garg et al.

Case No.: 25CV457167

Motion for approval of attorney fees and costs, filed by defendants Select Portfolio Servicing, Inc.; U.S. Bank Trust National Association, not in its individual capacity but solely as Collateral Trust Trustee of Firstkey Master Funding 2021-A Collateral Trust (erroneously named as “U.S. Bank Trust National Association Collateral Trustee of Firstkey Master Funding 2021-A”); Firstkey Mortgage, LLC; and Randhir Gandhi (collectively, defendants). Notice is proper and the motion is opposed by plaintiff Gita Patel.

Defendants filed their motion in October 2025, requesting \$42,854.50 in attorney fees and \$3,658.85 in costs. That motion is supported by a memorandum of points and authorities; a declaration by counsel with exhibits; and a request for judicial notice. Defendants did not file a memorandum of costs, which is required by California Rules of Court, rule 3.1700(a)(1). The court will not approve any claimed costs. (*Evleshin v. Meyer* (2025) 115 Cal.App.5th 1021, 1047.) Defendants filed an unauthorized “supplemental declaration” of counsel in February 2026 without leave of court, which seeks to add an additional \$46,513.35 to its pending motion for attorney fees and costs (apparently related to attorney fees and costs incurred in a related federal bankruptcy court proceeding). The court will not consider this unauthorized and procedurally improper supplement. The court takes no position on whether those other fees and costs may be added to the loan balance.

The recorded deed of trust between Gita Patel and original lender Countrywide Bank includes two sections relevant to defendants’ motion. Section 9, titled Protection of Lender’s Interest in the Property and Rights Under this Security Instrument provides, in relevant part: “If (a) Borrower fails to perform the covenants and agreements contained in this Security Instrument, (b) there is a legal proceeding that might significantly affect Lender’s interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien which may attain priority over this Security Instrument or to enforce laws or regulations), or (c) Borrower has abandoned the Property, then *Lender may do and pay for whatever is reasonable or appropriate to protect Lender’s interest in the Property and rights under this Security Instrument*, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. *Lender’s actions can include, but are not limited to: (a) paying any sums secured by a lien which has priority over this-Security Instrument; (b) appearing in court; and (c) paying reasonable attorneys’ fees to protect its interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. ... [¶] Any amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument.* These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.” (Defendants’ RJN, filed 10/13/25, exh. 1, italics added.) The court takes judicial notice of the recorded deed of trust and the recorded assignments of deed of trust (exhibits one through four of defendants’ request for judicial notice). (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1; Evid. Code, § 452, subds. (c), (h).)

Section 22 of the deed of trust, titled Acceleration, Remedies, provides in relevant part: “Lender shall give notice to Borrower prior to acceleration following Borrower’s breach of any covenant or agreement in this Security Instrument (but not prior to acceleration under Section